

24STCV25248 24STCV25248

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-08-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C08%2F18%2F2026

Source SHA-256: 2db3988eb2f993f4ef4dacf4216d32486880638a3030c6fcd1f08d45252ca8a3

Case Number: 24STCV25248 Hearing Date: August 18, 2026 Dept: 224

GEVORGYAN vs LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY, et al

TENTATIVE RULING

The Motion to be relieved as counsel for Defendant Barbara Blanford filed by Heywood G. Friedman and Law Offices of Heywood G. Friedman is GRANTED.

Counsel is to give notice and to serve the signed MC-53 Order within 5 days. Counsel is not relieved until proof of service of notice and the signed MC-53 Order is filed.

LEGAL STANDARD

Code of Civil Procedure, section 284(2) permits either the attorney or client, after notice from one to the other, to seek an Order from the Court to change counsel. The counsel seeking relief under 284(2) must first direct to the client a notice of motion and motion to be relieved of counsel on form MC-051. Cal. Rules Court, rule 3.1362(a). Specifically, California Rules of Court, rule 3.1362 (Motion to Be Relieved as Counsel) requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to Be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure, section 284, subdivision (2) is brought instead of filing a consent under Code of Civil Procedure, section 284, subdivision (1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)).

If it is served by mail, it must contain a declaration stating facts showing that the service address is the current residence or business address of the client, meaning it has been confirmed within 30 days before filing the motion to be relieved of counsel. Cal. Rules Court, rule 3.1362(d). Finally, the proposed order must be prepared on form MC-053, and must be lodged with the court and with the moving papers. Id. at rule 3.1362(e). "After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court." Ibid.

Here, counsel has complied with these requirements, and attested to a "breakdown in the attorney-client relationship."

Conclusion

The Motion to be relieved as counsel for Defendant Barbara Blanford filed by Heywood G. Friedman and Law Offices of Heywood G. Friedman is GRANTED.

Counsel is to give notice and to serve the signed MC-53 Order within 5 days. Counsel is not relieved until proof of service of notice and the signed MC-53 Order is filed.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.